IN THE NATIONAL COMPANY LAW TRIBUNAL,
ALLAHABAD BENCH, PRAYAGRAJ
(through web-based video conferencing platform)

CP(CAA)No.12/ALD/2022
(2nd Motion)
Under Section 230-232 and Section of the Companies Act, 2013

In the matter of Scheme of Arrangement between:

In the matter of
Nihon Impex Private Limited,
(CIN: U51109UP1992 PTC 147101)
…...Demerged Company / Applicant No 1

And

Gallantt Industry Private Limited,
(CIN:U26990UP2020PTC137202)
…...Resulting Company No.1 / Applicant No 2

Gallantt Udhyog Private Limited,
(CIN: U15123UP2020PTC137201)
…...Resulting Company No.2 / Applicant No 3

Shree Surabhi Wheat Products Private Limited,
(CIN: U15400UP2014PTC064992)
…...Resulting Company No.3 / Applicant No 4

Shree Surabhi Flour Mills Private Limited,
(CIN: U15400UP2014PTC064993)
…. Resulting Company No.3 / Applicant No 5

Gallantt Lifespace Devlopers Private Limited,
(CIN: U45400UP2021PTC148452)
…. Resulting Company No.5 / Applicant No 6

Order delivered on: 19.07.2022

Coram: **HON'BLE MR. HARNAM SINGH THAKUR, MEMBER (JUDICIAL)**
HON'BLE MR. SUBRATA KUMAR DASH, MEMBER (TECHNICAL)

Present through video conferencing:

For the Petitioner Companies: Sh. Madan Kumar Maroti,Adv
Sh. N. Gurumurthy, FCA
Ms. Aisha Amin, Advocate

Per: Subrata Kumar Dash, Member (Technical)

ORDER

—Sd— —Sd—

1. This is a joint Second Motion company petition filed by the Petitioner-Companies, namely, Nihon Impex Private Limited (Demerged Company/Petitioner Company No.1), Gallantt Industry Private Limited (Resulting Company/Petitioner Company No.2), Gallantt Udhyog Private Limited (Resulting Company/Petitioner Company No.3), Shree Surabhi Wheat Products Private Limited (Resulting Company/Petitioner Company No.4) Shree Surabhi Flour Mills Private Limited (Resulting Company/Petitioner Company No.5) and Gallantt Lifespace Devlopers Private Limited **(**Resulting Company/Petitioner Company No.6); in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

2. The petitioner companies have prayed for sanctioning of the Scheme of Arrangement in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections.

3. The First Motion application seeking directions for Dispensing/Convening with the meetings of the Equity Shareholders and Secured and Unsecured Creditors of all the Applicant Companies was filed before this Tribunal vide Company Application No. CA (CAA) No.04/ALD/2022 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act') necessary directions were issued on 20.04.2022. In the order dated 20.04.2022, the meetings of equity shareholders and Unsecured Creditors of Applicant Companies Nos. 1,2,3,4, 5 & 6 and Secured Creditors of Applicant Companies No 6 were dispensed with for the reasons mentioned in the aforesaid order. The meetings of secured creditors of Applicant Companies Nos. 1, 2,3,4 & 5 were to be convened on 15.06.2022.

4. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 20.04.2022.

5. In compliance of the directions issued by this Tribunal, the meetings of Secured Creditors of the Applicant Companies No. 1, 2,3,4 & 5 were held on 15.06.2022 for which Chairperson and the Scrutinizer were appointed and they have filed their reports accordingly. The details are given underneath: -

Sr. No.	Meeting of	Chairpersons /Alternate Chairperson/ Scrutinizer	Chairperson's Report		Date of Meeting
			Date of filing	Date of Report	
1.	Secured Creditor of Applicant Company No. 1	Mr Shivendra Bahadur Advocate, Chairperson Mr Anil Kumar, PCS, Scrutinizer	Diary No.09021090011220 22/2 Dated 05.07.2022	15.06.2022	15.06.2022
2.	Secured Creditor of Applicant Company No. 2		Diary No.09021090011220 22/2 Dated 05.07.2022	15.06.2022	15.06.2022
3.	Secured Creditor of Applicant Company No. 3		Diary No.09021090011220 22/2 Dated 05.07.2022	15.06.2022	15.06.2022

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5.	Secured Creditor of Applicant Company No. 5		Diary No.09021090011220 22/2 Dated 05.07.2022	15.06.2022	15.06.2022

As per Chairperson's Reports dated 15.06.2022, the proposed scheme has been approved by 100% of the total votes (In terms of value) in case of Secured Creditors of Applicant Company No.1, 2, 3, 4 & 5.

6. The notice of hearing will be advertised in "Financial express" in English language, and "Rashtriya Sahara" in Hindi language, having wide circulation at Gorakhpur by not less than 10 days before the next date fixed for hearing.

7. In addition to the above public notice, the Petitioner Companies shall serve the notice of the petition within two weeks on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; New Delhi; (b) Registrar of Companies, Kanpur, Uttar Pradesh; (c) Official Liquidator; Allahabad, Uttar Pradesh; (d) Reserve Bank of India; (e) Jurisdictional Income Tax Authority by mentioning the PAN of the Company along with copy of this petition by speed post immediately.

8. The petitioner companies shall at least 7 days before the date of hearing of the petition file an affidavit regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under

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the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

9. The next date of hearing of the petition shall be on **10.10.2022** for the consideration of the approval of the scheme as contemplated between the petitioner companies.

10. The registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

—Sd—

(Subrata Kumar Dash)
Member (Technical)

—Sd—

(Harnam Singh Thakur)
Member (Judicial)

July 19, 2022

Swati Gupta(LRA)